

Court No. - 39

Case :- WRIT - C No. - 4184 of 2016

Petitioner :- Pyare Lal

Respondent :- Chief Engineer & Another

Counsel for Petitioner :- Ajay Kumar

Counsel for Respondent :- Mahboob Ahmad

Hon'ble Dilip Gupta,J.

Hon'ble Mukhtar Ahmad,J.

The petitioner seeks quashing of the recovery notice dated 21 November 2015 that has been issued by the Executive Engineer of the the Purvanchal Vidhyut Vitran Khand, Allahabad.

All that has been submitted by the learned counsel for the petitioner at the time of hearing of the petition is that the amount may be directed to be deposited in instalments.

Ms. Shubhra Singh, learned counsel appearing on behalf of the respondent Corporation has however stated that facility of making payment in instalment is available under Clause 6.14 of the Electricity Supply Code, 2005 and therefore, the petitioner may file an appropriate application before the Executive Engineer concerned.

Clause 6.14 of the Code deals with the instalment facility. The petitioner can take recourse to this provision.

Leaving it open to the petitioner to do so, we dispose of this petition.

Order Date :- 1.2.2016

M.A.Ansari

(Dilip Gupta, J.)

(Mukhtar Ahmad, J.)